

Before the Federal Maritime Commission, Washington, D.C.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

RESPONSE TO MOTION TO COMPEL

The Respondent has been very responsive to discovery requests that have been sent to it. In fact, the Respondent even complied with the initial discovery requests on September 16, 2025, including a substantial number of documents. Despite many of the requests being unreasonable, the Respondent has made very effort to respond to discovery related to the issues in the case, even sending a letter with several attachments providing back up documentation on March 5, 2026 that includes not only a breakdown of invoices along with back up documentation for the two shipments in question, but also for the other shipments for money that was owed at the time when TSS put a hold on the cargo. As will be more fully explained, the Respondent objected and still objects to producing material related to every shipment that was handled outside of the transactions on the 2 shipments at issue and those related to past due invoices as being irrelevant and not likely to lead to the discovery of admissible evidence. There are documents hat are referred to and are still being bate stamped. Some are being checked to make sure that they do not vilate the Complainant's confidentiality.

September 16, 2025: The attached Response to the Request for Productions was sent with bate stamped documents in response to the discovery requests. Attached is the

Response to the Request for Production that shows that the documents were responded to by Request. **Exhibit A.**

1. **January 6, 2026:** The Respondent was asked to link the documents to the Request for Production and thus far has refused to do so.
2. **March 6, 2026-** The Respondent received detailed documents on both the 2 shipments as well as others.

Respondent is giving its responses in a section entitled Respondent's responses.

1. The key deficiencies requiring an order compelling supplementation include at least the following categories (which track the Requests previously identified as deficient):
 - (a) Requests for Production No. 2: All internal communications concerning FormuKleen's account, including decisions to revoke credit terms or reroute shipments.
 - i. Respondent's Answer: Respondent stated, "Still checking for others" and producing RX000076-RX000083.
 - ii. The documents were not the full response. Respondent now takes the position that the communications were "verbal" despite the communications relating specifically to substantial and financially significant actions. Complainant has asked Respondent to confirm in writing that there are no further written communications concerning such key account-level actions. Respondent has not

produced complete internal communications, internal notes, system records, decision logs, and other writings regarding credit status, holds, release decisions, warehouse/lien assertions, demands for payment, or any internal deliberations regarding the shipments and Complainant's account. Respondent's "verbal communications" assertion does not excuse the absence of contemporaneous internal writings, system entries, accounting notes, or communications.

Respondent's Response: The Respondent cannot produce what does not exist. The Respondent sent the documents that it has in its possession.

(b) Requests for Production No. 3: All internal communications concerning FormuKleen shipments.

- i. Respondent's Answer: Respondent stated "Still checking. Internal Communications was [sic] verbal." And producing RX-000076-RX000083.
- ii. The documents were not the full response. Respondent now takes the position that the communications were "verbal" despite the communications relating specifically to substantial and financially significant actions. Complainant has asked Respondent to confirm in writing that there are no further written communications concerning such key account-level actions. Respondent has not produced complete internal communications, internal notes, system records, decision logs, and other writings regarding credit status, holds, release decisions, warehouse/lien assertions, demands for payment, or any internal deliberations regarding the shipments and

Complainant's account. Respondent's "verbal communications" assertion does not excuse the absence of contemporaneous internal writings, system entries, accounting notes, or communications.

Response. Respondent has produced what it has in its possession. Some of these documents go back to September 2025 prior to the Complainant producing any documents. They are also matched to the Request. The above referenced documents are the only ones in its possession.

(c) Request for Production No. 4: All TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments.

- i. Respondent's Answer: "Objected to as overly broad and not likely to lead to the discovery of admissible evidence. Asking for every document on all shipments is improper."
- ii. Respondent has not produced complete communications with third parties who performed services connected to the shipments (including drayage, terminal/warehouse, inland carriers, other OTIs, and any other vendors). Producing limited transactional documents such as arrival notices, telex releases, a bill of lading, or a single bill is not a substitute for producing the communications with service providers. Even though RFP No. 4 expressly includes the subject shipments, Respondent has still refused to produce the third-party communications for those shipments and instead hides behind the same "overly broad" objection as if the request were limited to "all

shipments.”

Response: Respondent has produced the documents that it has related to the shipments. The invoices outline all of the charges that were produced including aging reports.

There are numerous shipments that were done in the past, and the Complainant wants the Respondent to produce everything on unrelated shipments from the beginning of its doing business with FormuKleen. Shipments that have nothing to do with the money that was owed on either of the two shipments are irrelevant and not likely to lead to the discovery of admissible evidence. A letter was sent out on March 5, 2026, breaking down all of the charges that are related to the two shipments at issue as well as others that make up the list of invoices that were owed at the time of the two shipments that are at issue in this case. The letter of March 5, 2026, includes documents on past shipments. There are more than enough documents covering all of the shipments on which past due amounts are being claimed even though the Respondent questions the relevance. They are lined up in an organized manner providing invoices and the back up documentation. The Respondent has acted in good faith. Anything looking for older shipments would just be a fishing expedition and create unnecessary work for TSS.

(d) Request for Production 6: All records of duties, drayage, warehousing, storage, or other charges paid or advanced by TSS related to the subject shipments.

Response. Please see letter of March 5, 2026. **Exhibit B.** This letter explains exactly where to find the documents related to the two shipments in the letter.

- i. Respondent's Answer: "See documents already produced which give amounts. More documents will be forthcoming assuming they are still available."

Response See March 5, 2026, letter wherein it states as to the two shipments at issue the following,

"With respect to Container **BSIU8431017**, the following invoices relate directly to that shipment and are produced at **RX000539–RX000555**, inclusive:

- INV 86426 (RX000541)
- INV 85292 (RX000539)
- INV 90396 (RX000542)
- Credit Memo 86808 (RX000540)"

- ii. "Advanced charges" substantiation and accounting linkage:

Respondent has not produced complete documentation supporting any claimed "advanced charges," including proof of payment, invoices received from third parties, and accounting records showing how any such charges were applied to Complainant's account and/or the shipments. Where Respondent contends it "advanced" funds, the existence, timing, payee, and amount of the payment is a factual issue that must be supported by payment records, not by self-serving invoice entries.

Response. All of the invoices and aging reports were produced by the Respondent. See attached correspondence. From March 5, 2026,

and earlier responses attaching communications on the initial Response to the Request for Production. It is not in dispute that the Respondent directed the cargo to a trucking yard and to its warehouse and paid some local terminal charges. The fact that Formukleen received its cargo makes it obvious that TSS advanced customs charges.

(e) Request for Production No. 7: All records of duties, drayage, warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen for any shipment in addition to the subject shipments.

- i. Respondent's Answer: "Objected to as overly broad and not likely to lead to the discovery of admissible evidence for shipments that are not at issue in this case, but without waiving ths [sic]objection, please see the aging reports"
- ii. "Unrelated balances" / account history: Respondent has invoked "unrelated outstanding balances" as justification for withholding release. Respondent therefore must produce the records constituting those alleged balances - shipment-level detail, invoices, statements, payment history, and any account ledger or aging detail, suffi to identify exactly what Respondent contends was owed and why.

Response. The prior invoices and aging reports have been produced. The invoices describe the services. The Respondent objects to discovery other than the two shipments involved in the case but has produced related documents that comprise the charges for its invoices in its March 5, 2026, letter.

(f) Request for Production No. 10: All internal or external guidance or policies on when and how to withhold cargo for unpaid debts.

- i. Respondent's Answer: "No written guidelines that Respondent is aware of."
- ii. Respondent has invoked written "terms and conditions" and/or warehouse/lien rights to justify its conduct yet has responded "none" to requests that seek the very documents Respondent relies upon. Respondents cannot simultaneously rely on written terms while refusing to produce them. To the extent Respondent contends no such written documents exist, Respondent must provide a sworn declaration describing the search and confirming nonexistence.

Response. None. There is nothing in the rules that requires a sworn statement.

(g) Request for Production No. 13: All organizational charts or job descriptions showing who was responsible for transportation coordination, customer communication, and financial decision-making during the time of the events at issue.

- i. Respondent's Answer: "None."
- ii. Written terms, policies, and decision-maker/roles: Respondent has invoked written "terms and conditions" and/or warehouse/lien rights to justify its conduct yet has responded "none" to requests that seek the very documents Respondent relies upon. Respondent cannot simultaneously rely on written terms while refusing to produce them. To the extent Respondent contends no such written documents exist,

Respondent must provide a sworn declaration describing the search and confirming nonexistence.

Response. None is still the Response.

(h) Request-by-request identification: Despite multiple requests by

Complainant, Respondent has refused to provide a request-by-request chart identifying the Bates ranges responsive to each Request and stating whether production is complete or whether documents are being withheld or do not exist. This is necessary to resolve the disputes efficiently and to prevent Respondent from continuing to hide behind generalities and fragmented productions.

Response. The initial Response to the Request for production did categorize the documents by Response.

(i) Interrogatory No. 1: Identify all employees, contractors, or agents who were involved in the handling, transportation, storage, release, or diversion of the subject shipments.

i. Respondent's Answer: TSS objects to this interrogatory as overly broad to the extent it seeks identification of "all employees, contractors, or agents." Subject to and without waiving this objection, TSS states that it did not hire or retain any "agents" with respect to the subject shipments. The individuals involved on TSS's end were employees Eddy Del Monte and Ricky Villena, who supervised customs clearance and arranged drayage. A drayage vendor was retained solely for transportation under their supervision.

Forwarder and an NVOCC. See 46 U.S.C. § 40102(17), (21); 46 C.F.R. § 515.2(k)–(l).

Under these provisions, an NVOCC is one that issues a house bill of lading, holds itself out as providing ocean transportation for hire, books cargo with ocean carriers, or otherwise assumes carrier responsibility for the ocean carriage of goods. TSS did none of these things. It did not book the cargo with the ocean carriers, did not issue house bills of lading, and did not assume or undertake responsibility for the ocean carriage of the shipments. Nor did TSS act as an Ocean Freight Forwarder or an NVOCC.

Instead, TSS's role was limited to customs clearance, arranging drayage, and, in the case of container BSIU8431017, providing temporary warehouse services pending payment. Once payment was made, both shipments were released and delivered. These activities were undertaken in TSS's capacity as a warehouse and drayage provider, not as an NVOCC or Ocean Freight Forwarder.

- ii. Respondent's answer does not respond to the interrogatory as written. Interrogatory No. 1 requires identification of all employees, contractors, or agents who were involved in the handling, transportation, storage, release, or diversion of the subject shipments, regardless of whether they were "hired or retained" by Respondent. Respondent improperly reframes the interrogatory into a hiring question ("did not hire or retain any 'agents'") and then limits the response to "on TSS's end," which is not what the interrogatory asks. Further, Respondent's own answer confirms third

parties were involved ("a drayage vendor was retained"), yet Respondent refuses to identify that vendor by name and provides no identification of other involved third parties referenced elsewhere (e.g., the "trucking partner's yard," the "trucking company," truck yard/warehouse entities). An objection to the word "all" does not permit Respondent to withhold basic identities of the contractors/vendors it admits participated in the shipments' transportation, storage, and release. Finally, Respondent's lengthy discussion of why it was not acting as an OTI/NVOCC is argument, not an answer. Whether Respondent believes it was an OTI is not responsive to the interrogatory, which seeks identification of the individuals and entities involved. At minimum, Respondent should be compelled to supplement Interrogatory No. 1 with the names and contact information of every contractor/vendor/agent involved with the subject shipments, including the drayage vendor retained, steamship lines, any trucking company/driver, and any yard/warehouse operators involved in storage, holds, and release.

Response. The yards were identified. Please look at prior discovery and the letter of March 5, 2026, which contains back up documentation including documentation relating to drayage and advisories as when the cargo arrived and customs documentation. Names were given in the Answer.

2. Respondent's failure to produce third-party communications, particularly as to

Request for Production No. 4, appears calculated to obstruct discovery of facts that will corroborate Complainant's claims regarding Respondent's role in the subject shipments and undermine Respondent's asserted justifications. Email communications are objective, readily identifiable business records. Respondent's refusal to produce them supports an inference that Respondent is withholding evidence because it is adverse to Respondent's position and supportive of Complainant's.

Response. Please see emails attached to the original Response to the Request for Production as well as information related to the Notice to Arrival.

3. Respondent's continuing refusal to supplement is prejudicial. Complainant cannot prepare the case, evaluate Respondent's defenses, or test Respondent's factual assertions (including claimed bases for withholding, liens, terms, and balances) without documents uniquely in Respondent's possession, custody, or control.

Response. FormuKleen has plenty of documentation and knows who TSS was dealing with on these shipments.

CERTIFICATE OF SERVICE

I certify that on the 23rd day of March 2026, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

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